



SPONSOR: Sen. Pettyjohn & Rep. K. Williams
Sens. Buckson, Hansen, Hocker, Hoffner, Lawson,
Mantzavinos, Richardson, Wilson; Reps. Griffith,
Osienski, Ross Levin, D. Short

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 142

AN ACT TO AMEND TITLE 11 AND TITLE 14 OF THE DELAWARE CODE RELATING TO SEXUAL
EXTORTION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 774, Title 11 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 774. Sexual extortion; class E ~~felony~~; class B felony.

(a) A person is guilty of sexual extortion when the person ~~intentionally compels~~ intentionally:

(1) Compels or induces another person to ~~engage~~ do 1 or more of the following:

a. Engage in any sexual act involving contact, ~~penetration~~ penetration, or intercourse with the ~~person~~
defendant or another ~~or others or to, produce~~ person.

b. Produce a visual depiction of the ~~person~~ victim or another person who is nude, or who is engaging in
sexual conduct, with the ~~person~~ victim or another ~~or others by~~ person.

(2) By means of instilling in the victim a fear that, if ~~such~~ the sexual act or production is not performed, the
defendant or another ~~will~~ person will do 1 or more of the following:

(1) a. Cause physical injury to ~~anyone~~; anyone.

(2) b. Cause damage to ~~property~~; property.

(3) c. Engage in other conduct constituting a ~~crime~~; crime.

(4) d. Accuse anyone of a crime or cause criminal charges to be instituted against ~~anyone~~; anyone.

(5) e. Expose a secret or publicize an asserted fact, whether true or false, intending to subject anyone to
hatred, contempt or ~~ridicule~~; ridicule.

(6) f. Falsely testify or provide information or withhold testimony or information with respect to
another's legal claim or ~~defense~~; defense.

(7) g. Reproduce, distribute, exhibit, publish, transmit, or otherwise disseminate a visual depiction of any
person who is nude, or who is engaging in sexual ~~conduct~~; conduct.

(8) h. Perform any other act which is calculated to materially harm another person ~~materially~~ with respect to the other person's health, safety, business, calling, career, financial condition, ~~reputation~~ reputation, or personal relationships. ~~Sexual~~

(b) Except as provided in subsection (c) of this section, sexual extortion is a class E felony.

(c) Sexual extortion is a Class B felony under any of the following circumstances:

(1) The defendant is an adult and the victim is 1 of the following:

a. A child, as defined in § 1100 of this title.

b. A vulnerable adult, as defined in § 1105 of this title.

(2) A violation of subsection (a) of this section causes the victim to suffer serious physical injury or death.

Section 2. Amend § 4163, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4163. Child abuse and child safety awareness, prevention, detection, and reporting.

(b) *Educational programming.* —

The Child Protection Accountability Commission and the Division of Family Services of the Department of Services for Children, Youth, and Their Families shall identify and maintain educational programming to be used by each school district and charter school for informing school district and charter school employees, students, and parents about personal body safety and child abuse and about how to detect and report child abuse. The Child Protection Accountability Commission and the Division of Family Services of the Department of Services for Children, Youth, and Their Families, in collaboration with the Department of Education, ~~must~~ shall review the educational programming and trainings required under this subsection every 3 years, at a minimum, and update the educational programming and trainings as needed to be relevant to Delaware students and conform with best practices. The educational programming must include all of the following:

(1) Training and education for school district and charter school employees that is evidence-based, whenever available, in order to raise awareness of issues regarding personal body safety, child abuse, child safety, and adult sexual misconduct in ~~schools.~~ Such schools. ~~The training and education must include:~~ include all of the following:

g. Applicable state and federal civil and criminal laws and penalties for violations of such ~~laws.~~ laws, including the crime of sexual extortion under § 774 of Title 11.

(2) Evidence-based, whenever available, age-appropriate instruction for students enrolled in grades pre-kindergarten through 12 that is related to personal body safety and sexual abuse and other forms of child abuse. Such instruction ~~shall~~ must include information on the difference between appropriate and inappropriate ~~eonducts~~ conduct.

sexual exploitation as defined in § 774 of Title 11, and the actions that a child may take to be protected from sexual abuse and other forms of child abuse. Such instruction ~~shall~~ must be designed to build on skills learned the previous year.

(3) Information for parents of students enrolled in grades pre-kindergarten through 12, online or in-person upon request, on all of the following:

a. Warning signs indicating that a child may be a victim of child abuse, including sexual abuse and adult sexual misconduct.

b. Effective, age-appropriate methods for discussing personal body safety and child abuse, including sexual abuse and adult sexual misconduct.

c. Resources for reporting suspected child abuse, including sexual abuse and adult sexual misconduct.

d. Counseling and other resources available to a child who has been the victim of child abuse, including sexual abuse and adult sexual misconduct.

e. Warning signs of adult sexual misconduct, including the derivative grooming of parents.

f. Effective, age-appropriate methods for discussing sexual extortion as defined in § 774 of Title 11.

g. Warning signs indicating that a child may be a victim of sexual extortion as defined in § 774 of Title 11.

(4) Each school district and charter school shall require a school administrator, school nurse, or school counselor to receive training in addition to the requirements set forth in paragraph (b)(1) of this section. The training and education to be evidence-based, whenever available, that must ~~include:~~ include all of the following:

d. Coordination with law enforcement and Title IX coordinators for any suspected violation of applicable policies or civil or criminal law, law, including the crime of sexual extortion created under § 774 of Title 11.

SYNOPSIS

In 2022, the FBI reported that law enforcement received over 7,000 reports related to the financial sexual extortion of minors, resulting in 3,000 victims and more than a dozen suicides. In 2023, South Carolina adopted “Gavin’s Law” in honor of Gavin Guffey, the son of Representative Brandon Guffey. Gavin was victim of sexual extortion, which led him to tragically take his own life at only 17 years old. Gavin’s Law created the crime of sexual extortion.

In Delaware, sexual extortion is a crime under § 774 of Title 11. It is classified as a Class E felony punishable by up to 5 years in prison. This Act increases the penalty for sexual extortion to a Class B felony, which is punishable by a minimum of 2 years in prison up to a maximum of 25 years in prison, under the following circumstances:

1. The defendant is an adult and the victim is a child, as defined in § 1100 of Title 11, or a vulnerable adult, as defined in § 1105 of Title 11.

2. The defendant’s sexual extortion of the victim causes the victim to suffer serious physical injury or death.

Gavin’s Law also requires school districts to educate students, and their parents or guardians, about the crime of sexual extortion. South Carolina’s Department of Education recommended including the required education in the Erin’s Law curriculum. Delaware has adopted its own version of Erin’s Law, under § 4163 of Title 14, that requires school districts and charter schools to provide appropriate training to employees and students, and to provide information to

parents, about personal body safety, child safety, and how to detect and report child abuse. This Act specifies that information about the crime of sexual extortion must be included in the educational programming required by Erin's Law.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual and to clarify the meaning of § 774 of Title 11.

Author: Senator Pettyjohn